$15.00

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Rcpt: 413979 Rec: 15.00
DS: 0.00 IT: 0.00
05/17/00 Dpty Clerk

JED PITTMAN, PASCO COUNTY CLERK
05/17/00 09:45am 1 of 3
OR BK 4367 PG 1777

Prepared by and return to:
Joseph D. Edwards, Esquire
Annis, Mitchell, Cockey,
Edwards & Roehn, P.A.
P.O. Box 3433
Tampa, Florida 33601

DECLARATION OF CONSENT TO JURISDICTION OF COMMUNITY DEVELOPMENT DISTRICT AND TO IMPOSITION OF SPECIAL ASSESSMENTS

Trout Creek Properties, ~~Inc.~~ LLC, a Delaware ~~corporation~~ LIMITED LIABILITY COMPANY (the "Landowner"), is the sole owner of the land described in Exhibit "A" attached hereto and made a part hereof, except for certain tracts and proposed rights-of-way owned by Pasco County and by the Meadow Pointe II Community Development District (the "District"). The land described in Exhibit "A" is located within the boundaries of the District. The undersigned, intending that it and its respective successors in interest shall be legally bound by this Declaration, hereby declares, acknowledges and agrees as follows:

1. The District is, and has been at all times on and after October 7, 1994, a legally created, duly organized, and validly existing community development district under the provisions of Florida Statutes, Chapter 190 (1999). The members of the Board of Supervisors of the District (the "Supervisors") and officers as constituted from October 10, 1994, to and including the date of this Declaration were duly elected to their respective positions in accordance with all requirements of Federal and Florida law including the Constitution of the United States of America and of the State of Florida and had the authority and right to authorize, approve, and undertake all actions of the District approved and undertaken from October 10, 1994 to and including the date of this Declaration.

2. The Landowner, its heirs, successors and assigns, hereby confirms and agrees that the special assessments imposed by Resolution 00-03 duly adopted by the Board of Supervisors of the District on March 21, 2000, and Resolution 00-04 duly adopted by the Board of Supervisors on May 9, 2000 are the valid, legal, binding obligations of the Landowner, its heirs, successors and assigns, and the Landowner, its heirs, successors and assigns, in consideration of the improvements for which such assessments have been levied by the District, hereby covenant to pay such assessments, as and when due, but recourse against the Landowner for failure to pay the assessments shall be limited to enforcement of the assessments as provided by law. The Landowner acknowledges and agrees that it was present at the meetings of the Board of Supervisors of the District at its meetings on March 21, 2000 and May 9, 2000, and further that it waived and does hereby waive any further notice which could be asserted as being applicable under provisions of Florida law in connection with such meeting.

3. The Landowner, its heirs, successors and assigns, hereby waives the right granted in Chapter 170.09, Florida Statutes (1999), to prepay the special assessments within thirty (30) days after the improvements are completed without interest, in consideration of the District's undertaking to make the Improvements.

THE DECLARATIONS, ACKNOWLEDGEMENTS, AND AGREEMENTS CONTAINED HEREIN SHALL RUN WITH THE LAND DESCRIBED IN EXHIBIT "A" HERETO AND SHALL BE BINDING ON PROPERTIES AND ON ALL PERSONS (INCLUDING CORPORATIONS, ASSOCIATIONS, TRUSTS, AND OTHER LEGAL ENTITIES) TAKING TITLE TO ALL OR ANY PART OF THE LAND, AND THEIR SUCCESSORS IN INTEREST, WHETHER OR NOT THE LAND IS PLATTED AT SUCH TIME. BY TAKING SUCH TITLE SUCH PERSONS SHALL BE DEEMED TO HAVE CONSENTED AND AGREED TO THE PROVISIONS OF THIS DECLARATION TO THE SAME EXTENT AS IF THEY HAD EXECUTED IT AND BY TAKING SUCH TITLE SUCH PERSONS SHALL BE ESTOPPED FROM CONTESTING, IN COURT OR OTHERWISE, THE VALIDITY, LEGALITY, AND ENFORCEABILITY OF THIS DECLARATION OR OF ANY OF THE ORDINANCES, RESOLUTIONS, AGREEMENTS, DOCUMENTS, AND OTHER MATTERS DEALT WITH HEREIN.

Dated effective as of the 10th day of May, 2000.

TROUT CREEK PROPERTIES, LLC
~~INC.,~~ a Delaware corporation

By: Stuart B. Aronoff
Print Name: STUART B. ARONOFF
Title: VICE PRESIDENT

WITNESSES:

Mark K Straley
Print Name: MARK K Straley

Print Name: JOHN R. SIERRA JR

STATE OF Florida

COUNTY OF Hillsborough

The foregoing instrument was acknowledged before me this 10th day of May, 2000, by Stuart B Aronoff, as Vice President of Trout Creek Properties, ~~Inc.~~ LLC, a Delaware corporation, on behalf of the corporation, ~~who is personally known to me~~ or produced California Drivers License as identification and did not take an oath. SBA

D. LOCKWOOD GRAY
MY COMMISSION # CC 683352
EXPIRES: September 23, 2001
Bonded Thru Notary Public Underwriters

NOTARY PUBLIC
Name:
Serial No.
My Commission expires:

#721311 v1 - 11648-001

MEADOW POINTE II
COMMUNITY DEVELOPMENT DISTRICT

DESCRIPTION: A parcel of land lying in Sections 32 and 33, Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

BEGINNING at the Northwest corner of said Section 33, run thence along the North boundary of the Northwest 1/4 of said Section 33, S.89°34'31"E., 2685.23 feet; thence along the North boundary of the Northeast 1/4 of said Section 33, S.89°57'09"E., 2652.29 feet to the Northeast corner of said Section 33; thence along the East boundary of said Northeast 1/4 of Section 33, S.00°11'36"W., 2645.86 feet; thence along the East boundary of the Northeast 1/4 of the Southeast 1/4 of said Section 33, S.00°14'24"W., 1322.89 feet; thence along the South boundary of said Northeast 1/4 of the Southeast 1/4 of Section 33, N.89°48'56"W., 1335.31 feet; thence along the Northeasterly boundary of the triangular Southwest 1/2 of the South 1/2 of the Northwest 1/4 of said Southeast 1/4 of Section 33, N.63°19'56"W., 1487.03 feet; thence along the Northwesterly boundary of the triangular Southeast 1/2 of the Southeast 1/4 of the Northeast 1/4 of the Southwest 1/4 of said Section 33, S.45°37'00"W., 946.13 feet; thence along the Westerly boundary of the East 1/2 of the Southeast 1/4 of said Southwest 1/4 of Section 33, S.00°27'03"W., 1326.12 feet to a point on the South boundary of said Southwest 1/4 of Section 33; thence along said South boundary of the Southwest 1/4 of Section 33, N.89°52'26"W., 2012.22 feet to the Southeast corner of the aforesaid Section 32; thence along the South boundary of the Southeast 1/4 said Section 32, N.89°50'36"W., 1314.55 feet; thence N.23°00'00"W., 4391.16 feet; thence N.08°00'00"E., 1280.11 feet to a point on the North boundary of the Northwest 1/4 of the aforesaid Section 32; thence along said North boundary, S.89°58'09"E., 244.60 feet; thence along the North boundary of the Northeast 1/4 of said Section 32, S.89°46'11"E., 2647.58 feet to the POINT OF BEGINNING.

Containing 822.244 acres, more or less.

DDT-TC-246
WP-100.01:MPIICDD
FLB
FLB

APRIL 28, 1994
REVISED 1-27-95